



Appeal Decision

Site visit made on 25 August 2026

by **A James BSc (Hons) MA MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 10th September 2026

Appeal Ref: 6006059

Three Horseshoes, Bannister Green, Felsted, Essex CM6 3ND

- The appeal is made under section 20 of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) against a refusal to grant listed building consent.
- The appeal is made by Mr Owen Spinner against the decision of Uttlesford District Council.
- The application reference is UTT/25/3150/LB.
- The works are described as 'replacement of two front doors (identical looking timber door, only difference being the glass switched for double glazing) - Replacement of five front-facing downstairs windows (identical looking timber windows, only difference being glass switched for double glazing and secondary glazing units removed) - Replacement of two kitchen windows at rear of property (identical looking timber windows, only difference being glass switched for double glazing and secondary glazing units removed) - Replacement of three front-facing upstairs windows (identical looking timber windows, only difference being glass switched for double glazing and secondary glazing units removed) - Replacement of two rear bedroom upstairs windows (identical looking timber windows, only difference being glass switched for double glazing) - Replacement of side bedroom upstairs window (identical looking timber windows, only difference being glass switched for double glazing).'

Decision

1. The appeal is dismissed.

Preliminary Matters

2. In the interests of conciseness, I have omitted narrative from the proposal description that does not form part of the works for which listed building consent is sought.
3. As the proposal relates to a listed building, I have had special regard to section 16(2) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act).
4. Since the Council issued its decision notice, a new National Planning Policy Framework (the Framework) was published on 17 August 2026. Both main parties have been given the opportunity to comment on the Framework and I have taken all comments received into consideration.
5. Following the Council's determination of the application, the Uttlesford Local Plan 2021–2041 (the Local Plan) was adopted in March 2026 and now forms part of the development plan. It supersedes the Uttlesford Local Plan 2005. I am required to determine the appeal on the basis of the development plan at the time of my decision. The Council, within its statement of case, identifies a policy from the new Local Plan that is relevant to this appeal. The appellant has had the opportunity to comment on the Council's case and I have taken all comments received into consideration.

6. The appellant has submitted a revised scheme with this appeal. The revised scheme includes works that are materially different to that set out on the application form, for which consent was originally sought. An appeal should not be used as a mechanism to evolve or refine a scheme. I have therefore determined the appeal based on the plans/details that were before the Council when it determined the listed building consent application. To do so otherwise has the potential to prejudice other parties who may have wished to comment on the revised scheme.

Main Issue

7. The main issue is whether the proposal would preserve a Grade II listed building, known as 'The Three Horseshoes' (Ref: 1322278), and any features of special architectural or historic interest that it possesses.

Reasons

8. The Three Horseshoes is a Grade II listed building, which is estimated to date back to the 17th century or earlier. The building was historically used as a public house, but was converted into a dwelling in the 21st century. It is a single storey building, with accommodation in the roof. It has a half-hipped roof, with three dormer windows on the front roof slope. The fenestration on the front elevation comprises of traditional timber sash windows, with glazing bars and horns. Casement windows are also present on the rear elevation. The windows are predominantly single glazed with secondary glazing. Although some double glazed windows are present, these are the exception rather than the norm. There are two, 20th-century doors on the front elevation, which are constructed of timber and feature small paned lights.
9. Based on my site visit and the evidence before me, I find that the listed building's special interest insofar as is relevant to this appeal is derived from its historic and architectural interests as an illustration of architecture from the 17th century or earlier. The building's surviving historic fabric, presence of traditional fenestration and doors, and its pleasing architectural design make important contributions in these regards.
10. The proposal seeks to replace the existing windows with new timber framed, slimline double glazed windows and remove the existing secondary glazing. The existing windows by reason of their design and use of traditional materials make a positive contribution to the special interest of the listed building. The appellant advises that the existing windows are in a poor condition and are beyond viable repair. While a heritage joinery company has advised that the windows and doors are unsalvageable due to their condition, there is no detailed condition survey before me. There is also insufficient information before me in respect to the historic significance of the existing windows and doors, in order to fully assess the impact of the appeal scheme on any historic fabric.
11. I observed on my site visit that the condition of the windows varies. Some windows appear to be in a reasonable condition, but are in need of maintenance as some paint is flaking off. Other windows exhibit signs of significant rot. Where the windows are rotten, I appreciate that this poses issues for the appellant in respect to usability, weatherproofing, energy efficiency, safety and security and that intervention is required. However, I am not convinced from the evidence before me and my site visit that all the windows are beyond repair and that replacement is the only solution.

12. The appellant states that the proposed units would be replaced like-for-like utilising timber, with the same profile and detailing. However, the proposal would utilise slimline, double glazing. Double glazing has different reflective qualities and chunkier frames when compared to single glazing, so has a materially different visual impact. The proposal also does not appear to incorporate a traditional sash mechanism.
13. While glazing bars are proposed, these are not shown on the proposed drawings and it is unclear whether they would be integral or astragal. In the absence of detailed drawings, I cannot be satisfied that the design would accurately replicate the existing windows, particularly in respect to profiles, details of glazing bars, the design of the horns and sash mechanism. In this case, such information is fundamental in order to make an assessment of whether the works would preserve the special interest of the listed building and I do not find that such details can be left to condition.
14. The Council's Conservation Officer raises no objection to the principle of replacing the casement windows on the rear and side elevations, as these appear to be later additions. However, there is insufficient information before me in respect to the design of the proposed windows for me to make a full assessment of the suitability of these windows.
15. The appellant seeks to replace the 20th-century doors on the front elevation. While the existing doors are a relatively modern addition, they are traditional in their character and materiality and complement the building's fenestration. They also form part of the historic evolution of the listed building and preserve its special interest. I observed on my site visit that the existing doors are in need of some maintenance. However, there is no condition survey before me or any compelling evidence that they are beyond repair.
16. In the absence of detailed evidence on the condition of the existing windows and doors, I am not persuaded that replacement is the only option or the most appropriate conservation-led solution. Furthermore, based on the plans before me, I am not satisfied that the proposed windows and doors would accurately replicate the existing joinery or be of sufficient quality to preserve the special interest of the listed building. Accordingly, I find that the proposal would result in harm to the special interest and historic integrity of the listed building. There is no clear and convincing justification before me for the harm that I have identified.
17. Policy HE6 of the Framework advises that when considering the effect of a proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation. In this case, I find that the proposal would cause harm to the special interest of the listed building, albeit the harm would be at a low level. Nonetheless, a low level of harm does not equate to a low planning objection and the Framework is clear that any harm to a designated heritage asset will be a matter of considerable importance and weight. Where a proposal would harm the significance of a designated heritage asset, the Framework states that the effect on the asset and its significance should be weighed against any public benefits from the proposal, which can include enabling energy efficiency measures to be employed.
18. The proposal would result in investment into the property, which would have a small economic benefit, which I give limited weight in my decision as a public

benefit. The proposal would improve the thermal efficiency and acoustic properties of the building and contribute to the government's goal of achieving net zero. Policy CC2 of the Framework requires that substantial weight is given to the benefits of improving the energy efficiency of existing buildings. However, this does not disapply other parts of the Framework.

19. In this case, any improvements to the building's thermal efficiency and consequent energy savings have not been quantified. Given that the proposal relates to a single property, any environmental benefits which would flow to the public at large are likely to be minimal. I appreciate that the proposal would also reduce the need for ongoing invasive repairs, reduce any further deterioration associated with the defective windows and doors and improve the weatherproofing and functionality of the building. However, there is no compelling evidence before me that the wholesale replacement of the windows and doors is the only option for achieving the proposed public benefits and I therefore give these benefits limited weight in my decision.
20. It is clear that the benefits which would accrue would primarily be of a private nature. Furthermore, there is no substantive evidence to suggest that the use of the building as a dwelling would cease in the absence of the proposed changes. As a result, I do not find them necessary to secure the viability and long-term conservation of the building.
21. Overall, I give the public benefits limited weight in my decision. Even if I were to afford substantial weight to the energy efficiency improvements, I do not find that the public benefits would outweigh the considerable weight and importance that I am required to give to the harm that I have identified to the designated heritage asset. Consequently, there would be insufficient public benefits arising from the proposal to outweigh the harm that I have identified.
22. Given the above, I conclude that, on balance, the proposal would fail to preserve the special interest of the listed building. The proposal would fail to satisfy the requirements of the Act and Policies HE4 and HE6 of the Framework. The proposal would also conflict with Core Policy 62 of the Local Plan. This policy among other things requires that proposals for alterations to a listed building retain the special interest that justifies its designation.

Other Matters

23. I acknowledge the Parish Council's support for the proposal; however, this does not alter my findings set out above.

Conclusion

24. For the above reasons and having regard to all other matters raised, I conclude that the appeal should be dismissed.

A James

INSPECTOR